

IN THE SUPREME COURT OF BANGLADESH  
HIGH COURT DIVISION  
(CIVIL REVISIONAL JURISDICTION)

Present:

**Mr. Justice Md. Moinul Islam Chowdhury**

**Civil Revision No. 27 of 2010**

Md. Fazlur Rahman and others

----- Defendant-appellant-petitioners

=Versus=

Md. Abed Hossain Mondal and others

----- Plaintiff-respondent-opposite-parties

Mr. Abdul Wahab Dewan, Advocate

----- For the petitioners.

Mr. Md. Mamun Aleem, Advocate

----- For the opposite-party Nos.1-4

Heard on 08.02.2017 and

**Judgment on 22.03.2017**

At the instance of the present defendant-appellant-petitioners, Md. Fazlur Rahman and others, this Rule has been issued calling upon the opposite-parties to show cause as to why the impugned judgment and order complained of in the petition moved in Court to-day should not be set aside.

This Rule is directed against the judgment and order dated 17.09.2009 passed by the learned Additional District Judge, Joypurhat dismissing the appeal in Misc. Appeal No.17 of 2007 affirming the judgment and order dated 04.03.2007 passed by the learned Joint District Judge, 2<sup>nd</sup> Court, Joypurhat in Misc. Sani Suit No.05 of 2006 dismissed the

suit arising out of Partition Suit No.26 of 1983 in the Court Joint District Judge, Joypurhat.

The relevant facts for disposal of the Rule, inter alia, are that the present opposite-party Nos.1-2 and the predecessors of the opposite-party Nos.3 and 4 as the plaintiffs filed the Partition Suit No.23 of 1983 wherein some of the petitioners were made parties as the defendants, including the petitioner Nos.1-10. No summons were served upon the present-defendant-petitioners, but obtained the notice serving report in collusion with the process server of the Court, therefore, obtained a preliminary decree in the said suit on 25.02.1995 and also obtained final decree on 12.03.2006 which are beyond of knowledge of the present defendant-petitioners. Some of the contesting defendants preferred the Title Appeal No.63 of 1999, hear again no notices were served as to the appellants upon the present defendant-petitioners. After the disposal of the appeal, the Execution Case No.5 of 2006 was filed and pursuant to the said execution case when the Court officials and others came into the property on 21.07.2006 the present petitioners came to know about the preliminary and final decree were passed against them. The present petitioner obtained certified copies of the said decree on 09.04.2006 thereby the present petitioners filed Misc. Case No.5 of 2006 under Order IX(9) Rule 13 read with section 151 of the Code of Civil Procedure for setting aside the impugned decree.

The present plaintiff-opposite-party Nos.1-4 contested the misc. case by filing a written objection contending that the required summons of the Partition Suit No.26 of 1983 were duly served upon the present defendant-petitioners and some of them personally received the notices from the Court and some of them declined to receive notices/summons of the suit. However, the present petitioners as the defendants failed to contest the case, as they do not have any interest in the suit land. In fact, some of the defendants in the Partition Suit No.26 of 1983 have contested and obtained their respective sahams as prayed to the Court but the present petitioners new-well that they do not own or possess any land described in the schedule of the plaint.

After hearing the parties the learned Joint District Judge, Court No.2, Joypurhat dismissed the miscellaneous case filed under Order 9 Rule 13 of the C.P.C by the Order No.98 dated 04.03.2007. Being aggrieved the present petitioners as the appellants preferred the Misc. Appeal No.17 of 2007 in the Court of the learned District Judge, which was heard by the learned Additional District Judge, Joypurhat, who by his judgment and order dated 17.09.2009 disallowed the misc. appeal. This revisional application has been filed challenging the said impugned judgment passed by the learned appellate Court below and the Rule was issued thereupon.

Mr. Abdul Wahab Dewan, the learned Advocate appearing for the petitioners submits that both the Courts below erred in law resulting in an

error in the decision occasioning failure of justice in this regard, mis-appraising, mis-interpreting, mis-appreciating, mis-construing and non-considering the evidences on record and thereby erroneously dismissed the case.

He also submits that regard notices and summons were not served to the petitioners and as well as the Advocate commissioner never gone to the case land and no notices were served upon the petitioners but opposite party did not adduce any evidence in this matter to prove their case, but the learned Courts below did not consider it with judicial mind and as such the judgment of the Courts below are not sustainable under law. It is also submitted that under the provision of Order 9 Rule 13 of C.P.C if a decree is obtained by suppressing summons in order to obtain the decree by practicing fraud, such a decree obtained fraudulently and it is nullity in the eye of law.

This Rule has been opposed by the present opposite-party Nos.1-4.

Mr. Md. Mamun Aleem, the learned Advocate appearing for the opposite-party Nos.1-4 submits that both the learned trial Court and the learned appellate Courts below have considered the evidence and documents as well as the depositions of the witnesses of the respective parties concurrently found that the required notices/summons were served upon the defendants regarding the Partition Suit No.23 of 1983 by passing the preliminary and final decree allocating 2.30 ½ out of total 16.53 acres

of land within the same jote as described in the plaint of the partition suit, therefore, the miscellaneous case filed under Order 9 Rule 13 of the Code of Civil Procedure for setting aside the said decree is not applicable in this case and the appeal, therefore, the Rule should be discharged.

The learned Advocate also submits that in a partition suit both the plaintiffs and the defendants have right to claim their respective sahams on the basis of their entitlement, but the present petitioner even after refusing summons were knowingly well about the partition suit failed to contest or claim any saham with a mala-fide intention to cause sufferings to the present plaintiff-opposite-parties, thus the present Rule is liable to be discharged.

Considering the above submissions made by the learned Advocates for the respective parties and also considering the revisional application filed under section 115(1) of the Code of Civil Procedure along with the annexures therein, in particular, the impugned judgment and order passed by the learned appellate Court below and also considering the materials in the lower Court records, it appears to me that the present opposite-party Nos.1-4 as the plaintiffs filed a partition suit claiming saham of the land measuring 2.30½ acres out of total land measuring 16.53 acres situated in the same Mouza being Mouza Malidah under different khatians, P.S. Panchbibi, District-Joypurhat (previous District Bogra at present Joypurhat). This partition suit subsequently renumbered as the Partition

Suit No.135 of 2005. The suit was decreed in preliminary form on 25.02.1999 and the final decree was passed on 12.03.2006 allocating the saham of the land measuring 2.30½ by the said decree.

The present misc. case has been filed by the present plaintiff-petitioners under Order 9 Rule 13 of the Code of Civil Procedure claiming that no notices were served upon them as to the filing of the Suit No.23 of 1983 as per the requirement of law, thus, the petitioners were not aware of the suit because, the present opposite-parties as the plaintiffs concealed the summons in collusion with process server of the Court, therefore, the decree passed in the said Partition Suit No.23 of 1983 (renumbered as the Partition Suit No.135 of 2005) is liable to be set aside.

From the above given facts, I have to take a decision as to whether the trial Court in the partition suit decreed preliminary and finally within the framework of law or not. Under the provisions of law, in any partition suit filed by a party the Court issues summons upon the defendants for appearance and to contested the suit. In this regard, it is to be mentioned that a partition suit is an unique type of suit wherein both the plaintiffs and the defendants can equally claim their portion or saham upon the land in the plaint. It means the right of both the parties can be ascertained in a decree, provided that, a party either as a plaintiff or defendant can produce sufficient evidence as to the entitlement upon a land and the Court is under

an obligation to allocate sahams for the plaintiffs and the defendants as per the claims made.

In the instant case, it appears from the judgments of the Courts below as well as from the plaint of the partition suit and also from the materials in the lower Court records that the predecessors of the petitioners were made parties in the said partition suit along with the other defendants. It further appears to me that some of the defendants have refused to receive notices and some contested the suit, who have prayed for their respective sahams and by passing the decree the concern Court allocated sahams to those defendants but the present petitioners as the defendants failed to contest the suit and also failed to claim any saham. Instead the petitioners as the applicants filed the misc. case contending that no summons were issued upon them, as such, they could not contest the suit or claim sahams in the said suit.

I have carefully examined the evidence produced by the petitioners regarding the issuing of summons in the said suit and I am satisfied that some of the petitioners received copies of the summons personally, but some of the present petitioners refused to accept the summons which were taken into them by the process server pursuant to the order of the concerned Court.

In view of the above discussions the relevant law has been produced under Order 9 Rule 13 of the Code of Civil Procedure whereby a Court

shall set aside an ex parte decree if a party can satisfy to the Court that the summons was not duly served upon them or that he or she was prevented by any sufficient cause from appearing in the Court when the suit was called on for hearing.

The said Rule 13 has been amended by inserting Rule 13A by the Code of Civil Procedure (amendment) Act, 2006. Now, the law has made further easier for setting aside an ex parte decree by payment a cost if and only the Court is satisfied after examining the document of the partition suit and the other litigations. It appears that the process server has taken sufficient steps to serve the notices upon the present petitioners as the defendants, in particular, on 14.09.1983 by the Order No.6 of the Partition Suit it appears that the notices were returned after service upon the defendant Nos.80-83, 86, 89, 92 and 93. That since notices were taken to the defendant Nos.53, 54 and 55, but they declined to receive notices, as such, the notices were returned unserved. Thereafter, on 22.12.1983 the notices were served by way of substituted served by affixing a copy thereof in the conspicuous places in the Court, and also in the part of the house where the defendants were known to have lastly resided. On the basis of the above given facts it cannot be give a view that the Partition Suit No.23 of 1983 (renumbered as Partition Suit No.135 of 2005) was passed by practicing fraud, as such, the misc. case filed under Order 9 Rule 13 of the

Code of Civil Procedure can be considered as a proper ground for setting aside the decree was passed.

The learned trial Court after considering the evidence, both the documentary and by way of depositions, came to a lawful conclusion to dismissed the misc. case filed by the present petitioners on the basis of the following findings :-

“ নথীজাত চূড়ান্ত ডিক্রী পাঠ দেখা যায়, বাদী ডিক্রীদারপক্ষ তাদের ২৩০<sup>১</sup>/<sub>২</sub> একর বাবদ, ৬১/১১৪-১১৮ নং বিবাদী একত্রে ৬৩ শতক এবং ১১৯-১২১ নং বিবাদী একত্রে ২৫ শতক বাবদ তাহাদের ছাহাম প্রাপ্ত সম্পত্তি পৃথক ছাহাম করে দিয়েছে। সে মতে প্রাথমিক ডিক্রী চূড়ান্ত করা হয়েছে। চূড়ান্ত ডিক্রী কমিশন রি-পার্ট, ফিল্ড বুক ও ছাহাম খতিয়ান পাঠ দেখা যায় প্র-ত্যক দা-গর বিপরী-ত দখলদার-দর নাম উ-ল্লখ করা হ-য়-ছ। কোন কোন দা-গ এই মিস কে-সর প্রার্থকগ-নর নাম ও উ-ল্লখ আ-ছ। ১১৯-১২১ নং বিবাদী ১০৯ দা-গ ৫০ শত-কর কাত ২৫ শতক এবং ৬১/১১৪-১১৮ নং বিবাদী ১০৯ দা-গর অবিশিষ্ট ২৫ শতক সহ ৪৫৫ দা-গ সাকুল্য ৩৮ শতক সম্পত্তি বাবদ ছাহাম পে-য়-ছ। বাদীগণ ৩৫১, ৩৫২ ও ৩৫৩ দা-গ ৮৩ শতক কাত ৫১ শতক, ৩৩৭ দা-গ ১৭ শত-কর কাত ০৮<sup>১</sup>/<sub>২</sub> শতক এবং ৩৫৪ দা-গ ৪৯ শতক কাত ২৩<sup>১</sup>/<sub>২</sub> শতক সম্পত্তিতে ছাহাম পেয়েছে। বাদী ও বিবাদীদের উক্তরূপ ছাহাম প্রাপ্ত সম্পত্তি ছাড়াও নালিশী জোত সমুহে আ-রা অ-নক দাগ আ-ছ এবং সে দাগ সমুহে এই কেসের প্রার্থকগণসহ মূল মোকদ্দমার অন্যান্য বিবাদীদের দখল আছে মর্মে চূড়ান্ত ডিক্রীর ফিল্ড বুক পাঠে দেখা যায়। প্রার্থক প-ক্ষ ১নং সাক্ষী জেরার জবা-ব ব-ল-ছ যে, বাদী ও বিবাদী-দর ছাহাম প্রাপ্ত জমি ছাড়াও জোতে আরো অনেক জমি আছে। যুক্তিতর্ক শুনানীকালে জানা যায় মাননীয় আপীল আদালতে বাটোয়ারার ডিক্রী মূলে যে চূড়ান্ত ডিক্রী করা হয় সে মোতাবেক বর্ঠন ডিক্রী জারী মামলা হয় এবং সেখানে সম্পত্তিতে দখল দেওয়া হ-য়-ছ। ত-ব শুধু দখলী রি-পার্ট গ্রহ-ণর অ-পক্ষায় আ-ছ।”

The learned appellate Court below concurrently found that the notices were properly served upon the present petitioners as the defendants in the said partition suit, therefore, he disallowed the misc. appeal on the basis of the following findings :-

“It is found from the L.C.R. vide order No. 6 dated 14.09.1983 and order No. 10 dated 29.01.1984 that the summons naming the defendants were duly served including the present-petitioners. Some of the defendants appeared before the court and contested the case by filing written statement and some of the contesting defendants were given separate saham. Thereafter an appeal was preferred against the preliminary decree which was disposed of in 2004. Advocate commissioner was appointed by the court, who after completing his works submitted report to the court and the learned lower court made the preliminary decree final in accordance with law. Under this circumstances, it cannot be believed in any way that the appellants would not know about the partition suit and the decree passed thereon. The misc. case was hopelessly time-barred as well and as such the learned lower court rightly disallowed the misc. case. ”

After discussions of the concurrent findings of the Courts below, I do not consider that the learned Courts below committed any error of law in coming to a conclusion to find against the present petitioners who were the defendants in the Partition Suit No.23 of 1983 (renumbered as the

Partition Suit No.138 of 2005) and there is no misreading or non considering of the evidence by them.

In view of the above, I am not inclined to interfere to the judgment and order passed by the learned appellate Courts below.

Accordingly, I do not find merit in this Rule.

In the result, the Rule is discharged.

The interim order of stay granted upon the operation of the impugned judgment and order is hereby recalled and vacated.

The office is directed to communicate this judgment and order and also directed to send down the Lower Courts Records at once.